

26STCV04171 26STCV04171

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No. 13 - Taylor Norris v. Patrick M.

Doe, et al.

Plaintiff

Taylor Norris's Motion for Orders

Plaintiff Taylor Norris moves

for the following five orders: (1) issuing an OSC re: contempt by Patrick Moya and Michael Rainer for violation of subpoenas and bench warrants; (2) issuing an OSC re: contempt of Steven Whang for verifying knowingly false interrogatory responses; (3) compelling the production of documents and attendance at deposition by Patrick Moya, Michael Rainer, and Steven Whang; (4) imposing monetary sanctions against Moya, Rainer, Whang and Defense counsel in the amount of \$18,235.17 for misuse of the discovery process; and (5) compelling Moya and Rainer to pay \$500 each to Plaintiff pursuant to Code of Civil Procedure § 1992. In her reply brief, Plaintiff expands the relief to seven orders, including striking Defendants' demurrers and motions to strike, and barring Defendants from presenting evidence.

As an initial matter, the

Court notes that requesting relief for purported violations by multiple individuals of multiple subpoenas and multiple orders to show cause in a single motion constitutes an improper omnibus motion. Nor can new relief be sought for the first time in a reply brief. As such, the Court will only address Plaintiff's motion as a motion for an OSC re: contempt. Should Plaintiff seek separate relief, she should bring separately noticed motions.

OSC re: Contempt

Courts have discretion in

initiating contempt proceedings. The elements of contempt are: (1) facts establishing court's jurisdiction (e.g., personal service of subpoena, validity of court order allegedly violated, etc.); (2) the party's knowledge of the order disobeyed; (3) the party's ability to comply; and (4) the party's willful disobedience of the order. (*Koehler v. Superior Court* (2010) 181 Cal.App.4th 1153, 1169; *In re Jones* (1975) 47 Cal.App.3d 879, 881.) "The power of the court to punish for contempt is indeed broad, but it is not unlimited. It is a drastic remedy, to be employed only when necessary to the proper and orderly conduct of judicial proceedings." (*Chapman v. Superior Court* (1968) 261 Cal.App.2d 194, 201.)

Simply put, there is no

evidence here of willful disobedience of an order that may constitute the basis for contempt proceedings. Plaintiff argues that Patrick Moya and Michael Rainer violated properly issued subpoenas that compelled their attendance at an April 28 deposition. However, the record reflects that Defense counsel timely objected and communicated her and Rainer's unavailability. (*Arim Decl.*, ¶ 6, Ex. E.) She also informed Plaintiff's counsel that she was not counsel of record for Moya. (*Ibid.*)

There is a significant dispute

over when Plaintiff served Moya with the deposition subpoena for which Plaintiff seeks to have him held in contempt for violating. Plaintiff's counsel claims that Plaintiff personally served Moya with the subpoena on April 3, 2026 (*Rand-Lewis Decl.*, ¶ 8), while Moya's counsel claims that Moya was personally served with the subpoena on April 25, 2026, only three days before the scheduled deposition. (*Swaim Decl.*, ¶ 5.) Plaintiff's counsel does not indicate how she has personal knowledge of the purported service on April 3, and has not submitted a verified proof of service. There is no testimony by either Plaintiff or Moya regarding service on April 3. Nor does Moya provide testimony or a signed proof of service confirming service of the subpoena on April 25, 2026. The evidence is woefully inadequate to show that Plaintiff timely effected service of the subpoena on Moya such that he can be held in contempt for failing to appear for his deposition.

Despite knowing that the

parties were unavailable, Plaintiff's counsel appeared for the depositions to

take their certificates of nonappearance. (Rand-Lewis, ¶¶ 34-38; Arim Decl., ¶ 10.) There is no evidence that the witnesses willfully violated a subpoena. Further, Defendants' conduct after this incident reflects cooperation to schedule depositions on specific dates—first occurring on June 2, which Plaintiff's counsel cancelled the day before, and later on June 30.

Plaintiff also argues

that Steven Whang knowingly verified false interrogatory responses, which warrants an OSC re: contempt. The Court disagrees. Even if Whang had knowingly falsely verified discovery responses, such conduct would not be a willful violation of a court order. There are myriad sanctions and remedies available for such conduct, but contempt is not one of them.

The Court notes that Plaintiff's

rush to file this motion at an early stage of the litigation, requesting one of the most severe consequences available in civil proceedings, appears on its face to be a form of sharp-elbowed litigation tactics rather than a motion for warranted relief sought in good faith. In addition, some of the correspondence sent by Plaintiff's counsel to Defense counsel reflects an unjustified haste to punish any disliked conduct instead of discussing matters with an eye towards compromise, such as working cooperatively to schedule depositions. The Court has previously cautioned counsel against such tactics.

The Court reminds the

parties that under Local Rule 3.26, the Court has adopted the Los Angeles County Bar Association's Guidelines for Civility in Litigation as recommendations, and the Court expects all parties to abide by those guidelines. A copy can be found in Appendix 3.A. to the Local Rules.

Disposition

Plaintiff Taylor Norris's
motion for orders is denied.